

Tamil Nadu Rosewood (Conservation) Rules, 1995

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State of Tamilnadu- Act

Tamil Nadu Rosewood (Conservation) Rules, 1995

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Tamil Nadu Rosewood (Conservation) Rules, 1995

RULE TAMIL-NADU-ROSEWOOD-CONSERVATION-RULES-1995 of 1995

Published on 24 April 1995

Commenced on 24 April 1995

[This is the version of this document from 24 April 1995.]

[Note: The original publication document is not available and this content could not be verified.]

Tamil Nadu Rosewood (Conservation) Rules, 1995

Published vide Notification No. G.O. Ms. No. 138, E&F (FRX), dated 24th April 1995 - No. SRO A-25 (b)/95

G.O. Ms. No. 138, E&F (FRX), dated 24th April 1995 - No. SRO A-25 (b)/95. - In exercise of the powers conferred by sub-section (1) of section 23 of the Tamil Nadu Rosewood Trees (Conservation) Act, 1994 (Tamil Nadu Act 1 of 1995

), the Governor of Tamil Nadu hereby makes the following rules:-

1.

Short title.

- These rules may be called the Tamil Nadu Rosewood Trees (Conservation) Rules 1995.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(a)

"Act" means the Tamil Nadu Rosewood Trees (Conservation) Act, 1994 (Tamil Nadu Act

1 of 1995

);

(b)

"Form" means a form appended to the rules;

(c)

"Section" means a section of the Act;

(d)

words and expressions used and not defined in the Act shall have the meanings, respectively, assigned to them in the Act.

3.

Application for permission.

(1)

Every application for permission of the prescribed authority for the removal or dead or fallen rosewood tree under the proviso to section 3 of the Act shall be in Form I.

(2)

Every application referred to in sub-rule (1) shall be accompanied by a topo sketch drawn to such scale as may be displayed on a Notice Board provided in the office of the prescribed authority, demarcating the boundaries of the area where the dead or fallen rosewood tree is proposed to be removed lies.

4.

Inspection of Forest Officer.

- On receipt of an application filed under sub-rule (1) of rule 3, the prescribed authority shall require a Forest Officer not below the rank of District Forest Officer to inspect the dead or fallen rosewood tree and to make a report to the prescribed authority in Form-II.

5.

Granting of permission.

(1)

After considering the application filed under sub-rule (1) of rule 3 and also the report of the Forest Officer made under rule 4, the prescribed authority may, after recording the reasons by order, grant, subject to the conditions specified in items (i) and (ii) below or refuse to grant the permission sought for in the application:-

(i)

the proposed removal shall be completed within six months from the date of receipt of such order.

(ii)

such order shall be liable to be cancelled or modified for good and sufficient reasons to be recorded in writing after giving the applicant a reasonable opportunity of being heard.

(2)

The prescribed authority shall pass an order under sub-rule (1) within six months from the date of receipt of the application filed under sub-rule (1) of rule 3 and shall furnish a copy of such order to the applicant.

(3)

Where permission is granted, the prescribed authority shall communicate a copy of such order granting permission to the Officer not below the rank of District Forest Officer to enforce the conditions specified in sub-rule (1).

Appendix

Form 1

[See rule 3(1)]

1

Name and address of the applicant

2

Name of the village, taluk and district, where

the land on which the dead or fallen rosewood tree proposed to be

removed lies

3

Name, survey number and appropriate area of forest location where the dead or fallen rosewood tree proposed to be removed, lies

4

Name, location, survey number of the field and extent of the area, number of dead or fallen rosewood trees proposed to be removed in the form of surveyed sketch.

5

Proof of ownership of the forest or land and the dead or fallen rosewood tree.

6

Enumeration list showing the number of dead or fallen rosewood tree specified and girth at 1.37 meter from ground level of the tree proposed to be removed.

7

The route by which the removed rosewood tree is proposed to be taken out from the area

8

The approximate period within which the proposed removal will be completed.

[9

[Inserted by G O. Ms. No. 37, Environment and Forest (FR.14), dated the 7th March 2001. (No. SRO A-29/2001).]
Whether the applicant has been convicted for offences under the Tamil Nadu Forest Act, 1882 (Tamil Nadu Act V of 1882) or similar enactments.]

[10

[Inserted by G O. Ms. No. 37, Environment and Forest (FR.14), dated the 7th March 2001. (No. SRO A-29/2001).]
The mode of conveyance proposed to be used by the applicant to remove the fallen rosewood trees.]

Place:Date:

Signature of the applicant.

Form II

(See rule 4)

Part I ? {

| -

| 1

| Whether the applicant is the owner of the forest or land and tree proposed to be removed

|

| -

| 2

| In case of joint ownership, whether all the joint holders have given their consent to the applicant (Statement to be obtained if all of them have not made a joint application)

|

| -

| 3

| Number of trees proposed to be removed

|
|-
| 4
| Whether the tree is dead or fallen and the
reason therefor and whether such tree constituted danger to life
or property (Full information to be given).

|
|-
| 5
| Age of tree and measurement of girth at breast,
height (1.37 metre from the ground level)

|
|-
| 6
| Conditions that may be imposed in case
permission applied for is recommended

|
|-
| 7
| If the application is not recommended, reasons,
therefor.

|
|}
Part II ? {|

|-
| 1
| How is the land shape ?

|
|-
| 2
| What is the nature of soil and its depth ?

|
|-
| 3
| What is the nature of the surface ?

|
|-
| 4
| What is the average rainfall of the locality ?

|
|-
| 5
| What is the present condition of the land ?
Whether soil is seen slightly eroded.

|
|-
| 6
| Degree of erosion, moderate or severe

|
|-
| 7

| What soil conservation measures are necessary if
permission of removal of rosewood tree is granted

|

| -

| 8

| Period within which soil conservation measures
that may be considered necessary should be completed on the land
by the applicant.

|

| -

| 9

| Recommendations.

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